

WHO OWNS AI-GENERATED FASHION? COPYRIGHT, CREATIVITY, AND CONTROL IN THE AGE OF ARTIFICIAL INTELLIGENCE



1. Introduction

Artificial Intelligence (AI) is rapidly transforming the global fashion industry. What began as a tool for creative assistance and visualisation has evolved into sophisticated systems capable of generating complete fashion concepts, patterns, textures, and garment designs within minutes.

AI-powered platforms such as Midjourney, Runway ML, and similar technologies are increasingly being used by designers, fashion houses, and creative entrepreneurs to accelerate design processes and explore new forms of artistic expression.

While these technologies expand creative possibilities, they also raise a fundamental legal question: who owns the intellectual property rights in AI-generated fashion designs?

As AI-generated content becomes more prevalent, questions relating to authorship, ownership, originality, and infringement are becoming increasingly significant for designers and fashion brands.

2. Copyright Protection under Nigerian Law

The Nigerian Copyright Act 2022 provides the starting point for any discussion on ownership of AI-generated works.

Under Section 2(1) of the Act, copyright protection may subsist in literary, musical, artistic, audiovisual and other protected categories of works, provided the applicable requirements for protection are satisfied.

However, the Act does not expressly address works generated by artificial intelligence.

This creates an important legal uncertainty. Copyright law has traditionally been built around the concept of human authorship. AI-generated works challenge this assumption because the creative output may be produced partly or substantially through machine-generated processes.

The question therefore becomes whether an AI-generated fashion design can satisfy the requirements for copyright protection where a human user provides prompts, instructions, guidance, selection, or creative direction.

3. The Human Authorship Question

One approach is to focus on the role played by the human user in generating the design. In most instances, AI systems do not create content entirely independently. A user typically determines the concept, formulates prompts, selects preferred outputs, refines generated designs, and incorporates the resulting work into a broader creative process.

Where significant human creativity, judgment, and direction are involved, there is a strong argument that the resulting design should attract copyright protection. Under this approach, the relevant author would not be the AI system itself but the individual who exercised creative control over the process that led to the final work.

This position is likely to be particularly persuasive where the AI-generated design has been substantially curated, modified, refined, or incorporated into a broader human-created work.

4. Comparative Approaches to AI-Generated Works

Different jurisdictions have adopted varying approaches to the ownership of AI-generated content.

i. United Kingdom

The United Kingdom has one of the most explicit statutory provisions on computer-generated works.

Section 9(3) of the Copyright, Designs and Patents Act 1988 provides that where a literary, dramatic, musical, or artistic work is computer-generated, the author is deemed to be the person who undertook the arrangements necessary for the creation of the work.

This approach recognises that although the work may be generated through technology, human involvement remains central to the creative process.

ii. United States

The United States has adopted a more restrictive position.

The U.S. Copyright Office has consistently maintained that copyright protection requires human authorship. In the well-known *Zarya of the Dawn* decision, the Office concluded that purely AI-generated images were not entitled to copyright protection.

However, it also recognised that copyright may subsist in aspects of a work reflecting sufficient human creativity, including the selection, arrangement, editing, and modification of AI-generated content.

5. Key Intellectual Property Risks for Fashion Brands

Beyond questions of ownership, AI-generated fashion designs create additional legal risks.

i. Uncertain Ownership Rights

Where multiple individuals contribute prompts, refinements, or creative direction, disputes may arise regarding ownership of the resulting design.

ii. Infringement Concerns

AI systems are often trained on large datasets containing existing creative works. This raises concerns regarding whether AI-generated designs may inadvertently reproduce protected elements of pre-existing designs.

iii. Contractual Restrictions

Many AI platforms impose terms of service governing ownership, licensing, and commercial use of generated content. Designers and fashion brands should carefully review these provisions before commercialising AI-generated works.

iv. Brand Protection Challenges

Even where copyright protection is uncertain, businesses should consider alternative forms of protection such as trademarks, design registrations, confidentiality arrangements, and contractual protections.

6. Practical Considerations for Designers and Fashion Businesses

Businesses using AI in the creative process should consider the following measures:

- i. Maintain detailed records of prompts, design iterations, and creative decisions;

- ii. Document human contributions to the design process;
- iii. Review the ownership and licensing provisions of AI platforms;
- iv. Register eligible intellectual property rights where appropriate;
- v. Conduct due diligence before commercialising AI-generated designs; and
- vi. Implement clear contractual provisions addressing ownership and usage rights.

7. Conclusion

Artificial intelligence is reshaping the fashion industry and redefining traditional concepts of creativity and authorship. Yet the law continues to grapple with the implications of machine-assisted design.

While the Nigerian Copyright Act 2022 does not expressly address AI-generated works, there are strong arguments that copyright protection may subsist where a human exercises meaningful creative control over the generation, selection, or refinement of the final design.

Until Nigerian courts or legislators provide greater clarity, designers and fashion businesses should approach AI-generated content with both creativity and caution. The future of fashion may be increasingly powered by artificial intelligence, but the question of ownership remains fundamentally human.

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